

HOUSE BILL No. 1409

DIGEST OF INTRODUCED BILL

Citations Affected: IC 16-42-28.

Synopsis: Mobile retail food establishment operations. Provides that provisions establishing a statewide mobile retail food establishment license may not be construed to prohibit an owner or operator of a mobile retail food establishment from complying with: (1) the collection and reporting requirements relating to food or beverage taxes; or (2) obtaining applicable municipal business permits or complying with municipal ordinances or requirements regulating the business operations of mobile retail food establishments.

Effective: Upon passage.

King

January 8, 2026, read first time and referred to Committee on Public Health.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1409

A BILL FOR AN ACT to amend the Indiana Code concerning health.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 16-42-28-7, AS ADDED BY P.L.235-2025,
2 SECTION 6, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 UPON PASSAGE]: Sec. 7. **(a)** An owner or operator of a mobile retail
4 food establishment issued a statewide mobile retail food establishment
5 license is not:

6 (1) required to obtain a county or local **health or safety** license
7 or permit; or

8 (2) required to pay a county or local **health or safety**:

9 (A) inspection fee; or

10 (B) license or permit fee.

11 **(b) Nothing in this section may be construed to prohibit an**
12 **owner or operator of a mobile retail food establishment from**
13 **complying with:**

14 (1) the collection and reporting requirements relating to food
15 or beverage taxes imposed under IC 6-9; or

16 (2) obtaining applicable municipal business permits or
17 complying with municipal ordinances or requirements



1 **regulating the business operations of mobile retail food**
2 **establishments.**

3 SECTION 2. IC 16-42-28-8, AS ADDED BY P.L.235-2025,
4 SECTION 6, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
5 UPON PASSAGE]: Sec. 8. (a) Beginning January 1, 2027, a local
6 health department shall:

7 (1) receive applications for statewide mobile retail food
8 establishment licenses;

9 (2) collect annual license fees and inspection fees **authorized**
10 **under this chapter** and distribute those fees in accordance with
11 section 5(b) of this chapter;

12 (3) issue statewide mobile retail food establishment licenses; and

13 (4) conduct at least semiannual inspections of a mobile retail food
14 establishment that is issued a statewide mobile retail food
15 establishment license.

16 (b) Beginning January 1, 2027, a person may not operate a mobile
17 retail food establishment in Indiana unless the person obtains a mobile
18 retail food establishment license.

19 SECTION 3. **An emergency is declared for this act.**

